

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979 read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

**Court of Appeal Case No.
CA/HCC/0099/2023
High Court of Colombo
Case No. HC/1126/2019**

Maheshwaran Sadeesh Kanna alias
Athakanna

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.
R. P. Hettiarachchi, J.**

COUNSEL : **Ershan Ariyaratnam for the Appellant.**
: **Dishna Warnakula, DSG, for the
Respondent.**

ARGUED ON : **21/07/2026**

DECIDED ON : **17/09/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Appellant was indicted by the Attorney General under Section 354 of Penal Code for kidnapping from lawful guardianship and under Section 365 B (2) (b) of the Penal Code for committing two counts of the offence of Grave Sexual Abuse on Loku Gage Nirosh Chamara Kumara on 16.11.2011.

The trial commenced on 02/03/2021. After leading all necessary witnesses, the prosecution closed the case. The Learned High Court Judge had called for the defence and the Appellant had made a dock statement and closed his case.

The Learned High Court Judge after considering the evidence presented by both parties before the Court, convicted the Appellant as charged and sentenced the Appellant as follows:

- For the 1st Count – 07 years rigorous imprisonment with a fine of Rs.25,000/-. In default six months simple imprisonment.
- For the 2nd Count – 10 years rigorous imprisonment with a fine of Rs.25000/-. In default six months simple imprisonment.

- For the 3rd Count – 10 years rigorous imprisonment with a fine of Rs.25000/-. In default six months simple imprisonment.

Additionally, the Appellant was ordered to pay Rs.150,000/- as compensation with a default sentence of six-months simple imprisonment.

The court further ordered the sentences imposed on the 1st, 2nd and 3rd counts to run concurrently, while the default sentences are to run consecutively.

Being aggrieved by the aforesaid conviction and the sentence, the Appellant preferred an appeal to this Court.

The Learned Counsel for the Appellant informed this court that the Appellant has given his consent to argue this matter in his absence. At the hearing, the Appellant was connected via the Zoom platform from prison.

The Facts of this case *albeit* briefly are as follows.

According to PW1 - the victim of this case, he was about 12 years old when he faced this bitter ordeal. When giving evidence, he was 21 years old. During the time period relevant to this case, PW1 was attending school. He had only attended school until the 7th grade. On the day of the incident, when the victim had gone to a nearby playground, the Appellant had accompanied the victim to a building under construction and had closed all the doors and windows. The Appellant had inserted his penis to the mouth of the victim and had also sucked the penis of the victim. The Appellant had given Rs.20/- to the victim before his departure.

Upon returning home, the victim had divulged this incident to his father, who is named as PW2 in the indictment. A complaint was lodged on the same day to the police.

After the closure of the prosecution case, the defence was called, and the Appellant had made a dock statement from the dock and closed his case.

The learned Counsel for the Appellant only made submissions regarding the adjustment of the sentence considering the nature and the present circumstances of the Appellant.

In a case such as this, the trial judge must ascertain the testimonial trustworthiness, reliability and credibility of PW1, carefully and precisely. The evidence of a child witness can be considered satisfactory and acceptable only when the competence and credibility of the said witness has been assessed. Therefore, before the grounds of appeal can be considered in this case, it would be necessary to take into account the following authorities from other jurisdictions, pertaining to this topic.

In **Ratansinh Dalsukhbhai Nayak v. State of Gujarat** [2004] 1 SCC 64 the court held that:

“The decision on the question whether the child witness has sufficient intelligence primarily rests with the trial Judge who notices his manners, his apparent possession or lack of intelligence, and said Judge may resort to any examination which will tend to disclose his capacity and intelligence as well as his understanding of the obligation of an oath. The decision of the trial court may, however, be disturbed by the higher Court if from what is preserved in the records, it is clear his conclusion was erroneous. This precaution is necessary because child witnesses are amenable to tutoring and often live in a world of make beliefs. Though it is an established principle that child witnesses are dangerous witnesses as they are pliable and liable to be influenced easily, shaken and moulded, but it is also an accepted norm that if after careful scrutiny of their evidence the Court comes to the conclusion that there is an impress of truth in it, there is no obstacle in the way of accepting the evidence of a child witness”.

E.R.S.R Coomaraswamy in his “Law of Evidence” Volume 2 Book 2 at page 658 has stated referring to child witness;

“There is no requirement in English law, that the sworn evidence of a child witness needs to be corroborated as a matter of law. But the jury should be warned, not to look for corroboration, but of the risks involved in acting

on the sole evidence of young girls and boys, though they may do so if convinced of the truth of such evidence.....This requirement is based on the susceptibility of children to the influence of others and to the surrender to their imaginations”.

At page 659 it states “As regards the sworn testimony of children, there is no requirement as in England to warn of the risk involved in acting on their sole testimony, though it may be desirable to issue such a warning, though the failure to do so will generally not affect the conviction”.

In **Ranjeet Kumar Ram v. State of Bihar** [2015] SCC Online SC 500 the court held that:

“Evidence of the child witness and its credibility would depend upon the circumstances of each case. Only precaution which the court has to bear in mind while assessing the evidence of a child witness is that the witness must be a reliable one”.

Considering the above cited judicial decisions and writings, it is quite evident that the credibility of the evidence of a child witness would depend on the circumstances of each case, therefore it is the duty of the Learned Trial Judge to assess and decide on the evidence given by child witness.

Section 365B (1) of the Penal Code reads as follows:

(1) Grave sexual abuse is committed by any person who, for sexual gratification, does any act, by the use of his genitals or any other part of the human body or any instrument on any orifice or part of the body of any other person, being an act, which does not amount to rape under section 363, in circumstances falling under any of the following descriptions, that is to say-

(a) without the consent of the other person;

(aa) with or without the consent of the other person when the other person is under sixteen years of age;"

(b) with the consent of the other person while such other person was in lawful or unlawful detention or where that consent has been obtained, by use of force, or intimidation or threat of detention or by putting such other person in fear of death or hurt;

(c) with the consent of the other person where such consent has been obtained at a time the other person was of unsound mind or was in a state of intoxication induced by alcohol or drugs.

Explanation: "injuries" includes psychological or mental trauma.

PW1, in the history to the doctor, mentioned about anal intercourse being performed by the Appellant at that time. However, according to the JMO no evidence was found to substantiate such an act of anal intercourse. The victim had only attended school until grade 7. In his evidence he had admitted that he could only write his name and was unable to read.

The JMO who gave evidence, had stated that no wound had been detected around the anus or inside the anus of the victim. She had not expressed any opinion on the acts performed by the Appellant on the victim in his report.

Additionally, the Counsel for the Appellant contended that the evidence given by the victim contained contradictions and omissions which are very important in relation to the admissibility of evidence of the victim.

Justice Thakkar in **Bharwada Bhoginbhai Hirjibhai v State of Gujarat** 1983 AIR SC 753 stated:

"By and large a witness cannot be expected to possess a photographic memory and to recall the details of an incident. It is not as if a video tape is replayed on the mental screen".

In the case of **The State Of Tamil Nadu vs Ponnusamy** (2026 INSC 507) it was held:

"No doubt, there are certain contradictions and omissions in their testimonies, however, mere presence of contradictions and omissions

does not demolish the credibility of public witnesses, as long as they appear to be natural and are duly explained. The High Court appears to have proceeded on a presumption of falsehood and the findings in the impugned judgment are not based on concrete doubts; rather, the findings are based on suppositions and the Court's own subjective assessment of how a public witness is supposed to depose before the Court.

When we say that every contradiction is not fatal, we essentially mean that every contradiction carries different weight and the weight is to be adjudged in light of the surrounding evidence and the peculiar facts associated with a witness, including the fact that a public witness is almost invariably out of his comfort zone while deposing before a Court of law, that too in a murder trial.”

The Learned High Court Judge had very correctly considered the contradictions and omissions in the evidence of the victim and had arrived at the conclusion that the contradictions and omissions highlighted are not sufficient to create a doubt on the prosecution evidence.

The sequence of evidence had not been contradicted during the trial. Further, challenges raised during the cross examination of PW1 are not sufficient to affect the credibility of the witness. These matters have been accurately considered by the Learned High Court Judge in the judgment.

The defence took up the position of total denial of the incident. However, the Appellant had mentioned an act which had been performed by the victim on a female dog. This was not suggested to the victim during the cross examination by the defence.

The Learned High Court Judge in the judgment had considered all the evidence adduced by the defence and had given reasons as to why he acted on the evidence adduced by the prosecution. He has accurately analysed the defence evidence with a correct perspective and arrived at a correct finding.

The learned Counsel for the Appellant pleads to this court that the sentence imposed on the Appellant is excessive in respect of count number two and three. He invites this court to reconsider the sentence considering the date of offence and the present circumstances of the case. When this incident had taken place, the Appellant was 28 years old. Now he is 44 years old, as well as the sole breadwinner of the family.

Section 365B (2) b (2) of the Penal Code carries following sentence:

(2) Whoever-

(b) Commits grave sexual abuse on any person under eighteen years of age, shall be punished with rigorous imprisonment for a term not less than seven years and not exceeding twenty years and with fine and shall also be ordered to pay compensation of an amount determined by court to the person in respect of whom the offence was committed for the injuries caused to such person;

It is evident here that this Section carries a minimum mandatory sentence. This would mean that such a mandatory punishment is one which a judge does not have the discretion to change. If sentencing is mandatory, judges may “fit the punishment to the crime”. Therefore, the Trial Judge bears the duty of imposing an appropriate sentence taking into consideration all the circumstances of this case.

Considering the submissions made on behalf of the Appellant and the prosecution I consider imposing a sentence of 10 years in respect of the 2nd and 3rd counts is not appropriate in this case. Hence, considering all the circumstances of the case, I consider imposing 09 years rigorous imprisonment is an appropriate sentence to the Appellant in respect of the 2nd and 3rd counts. Hence, the 10-year sentences imposed on 2nd and 3rd counts are reduced to a 09-year rigorous imprisonment. The sentence imposed on the 1st count, fine imposed on all three counts and compensation imposed will remain same. I order the sentence imposed on counts number one, two and three to run concurrently.

Further, I order the 09-year rigorous imprisonment deemed to have commenced from the date of judgment i.e., on 31.03.2023.

The Appeal is dismissed subject to the above variation in the jail sentence.

The Registrar of this Court is directed to send this judgment to the High Court of Colombo along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL